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State of Bombay
v
Narasu Appa Mali

The case that you will now read about is unique among the ten cases discussed in this book. The Supreme Court decides over 50,000 cases a year. Some of these are especially significant from a legal, social or political perspective (and of course, many are not). Almost every important constitutional issue finds its way to the Supreme Court. It is therefore unsurprising that nine out of the ten cases considered in this book were decided by that court, even if they first arose in one of the high courts. This chapter is an exception, for it considers a judgement of the Bombay High Court from 1951 that continues to exert a significant influence on religion and 'personal law' in India. The court's judgement effectively made all uncodified personal law immune from fundamental rights under the Constitution.

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In contrast with general territorial law (which applies equally to everyone), 'personal law' is the body of law that applies different rules to different religious or ethnic communities. Personal law governs broadly three subject areas – family law (marriage, divorce, custody, alimony and maintenance), aspects of property law (succession, inheritance and wills) and the law governing religious establishments (such as endowments and offices).[1]